

25STCV35339 25STCV35339

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-27

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Case Number: 25STCV35339 Hearing Date: July 27, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

ROBERT M. COHEN, dba THE LAW

OFFICES OF ROBERT M. COHEN,

Plaintiff,

vs.

CARLE EBERT PIEROSE,

Defendant.

Case No.:

25STCV35339

Hearing Date:

July 27, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT CARLE EBERT PIEROSE'S MOTION FOR LEAVE TO FILE COMPULSORY CROSS-COMPLAINANT

Background

On May 29, 2024, Robert M. Cohen, dba The Law Offices of Robert M. Cohen, ("Cohen") filed a complaint against Defendant Carle Ebert Pierose ("Pierose"), asserting four causes of action for (1) breach of written contract (fee services agreement), (2) account stated, (3) open book account, and (4) common counts.

On April 23, 2026, Pierose filed the instant motion for leave to file a compulsory cross-complaint. On May 4, 2026 Cohen filed his opposition. Pierose replied on May 7, 2026. The motion's original hearing date was May 15, 2026, but it was continued to July 27, 2026.

On May 11, 2026, Cohen filed a petition to compel arbitration and to stay proceedings pending the outcome of the petition.

On July 15, 2026, Cohen filed an additional opposition.

Request for Judicial
Notice

The Court grants Cohen's
request for judicial notice of Exhibit A.

Discussion

In both the original
opposition and supplemental opposition, Cohen requests that the "Court pause

making any ruling on Defendant's Motion for Leave to File Cross-Complaint or any other [sic] or any other motion made by Defendant pending the court's ruling on Plaintiff's Petition to Compel Arbitration Pursuant to Code of Civil Procedure §1281.2 and Petition Requesting the Court Stay the Pending Lawsuit, Cohen V. Pierose, Case No. 25 STCV 35339 While Arbitration Is Pending Pursuant to Code of Civil Procedure §1281.4." (Opp., 1:26-2:5.)

The Court notes that "[t]he filing of a petition to compel arbitration does not automatically stay ongoing proceedings; the party seeking arbitration must request one." ((OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 140.) Pursuant to Code of Civil Procedure section 1281.4, "[i]f an application has been made to a court of competent jurisdiction ... for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined..." The statute's express language that "while such application is undetermined" necessarily means the stay is effective upon filing a proper motion, not after the motion is heard. Moreover, a "court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." ((Id. at p. 141, citing People v. Bell (1984) 159 Cal.App.3d 323, 329.)

In Cohen's petition to compel arbitration, he explicitly requests "that this Court, pursuant to Code of Civil Procedure §1281.2 and Code of Civil Procedure §1281.4, order this matter to arbitration as requested by the Plaintiff in that all of the requirements mandating that the Court order a matter to arbitration are present in the case at bar. Specifically, there is a written agreement between Plaintiff and Defendant in which both parties agreed to submit the dispute to binding arbitrate as required by Code of Civil Procedure §1281.2 which provides, that there must be a written agreement giving the Court permission to order a matter to arbitration. In this case, the written agreement is the Retainer Agreement." (Notice of Pet., 9:16-25.)

The arbitration agreement provides that controversies between the parties regarding payment of attorney fees, non-performance or breach of the agreement, and malpractice or professional negligence are subject to arbitration. (RJN, Ex. A, 7:13-21.) Pursuant to Pierose's proposed cross-complaint, he seeks to bring four causes

of action for professional negligence/ legal malpractice, breach of fiduciary duty, accounting, and declaratory relief. It appears that the arbitration provision may apply to these causes of action.

Given that Cohen filed a proper motion to stay proceedings pending the Court's determination on the petition to compel arbitration, and the grievances in the cross-complaint may arise out of the arbitration provision, the hearing on Pierose's motion to file a compulsory cross-complaint is stayed, pending the outcome of the petition to compel arbitration. Moreover, all litigation and discovery in this action is stayed, pending the outcome of the petition to compel arbitration, presently set for hearing on December 2, 2026. The Court will discuss advancing that hearing date with the parties.

Conclusion

Based on the foregoing, Pierose's motion for leave to file a cross-complaint is STAYED, pending the outcome of the petition to compel arbitration. The hearing on the petition to compel arbitration is advanced to _____ at _____ in Dept. 508. The Court continues the hearing on the motion to file a cross-complaint to _____ at 10:00 a.m. in Dept. 508.

Cohen is ordered to give notice of this Order.

DATED: July 27, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court